

Tentative Rulings for Department 503

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Tentative Ruling

Re: ***Michael Martines Physical Therapist v. Momentum Billing***
Superior Court Case No. 26CECG00549

Hearing Date: June 30, 2026 (Dept. 503)

Motion: Plaintiff's Motion for Reconsideration of Court's March 26, 2026 Order Denying Plaintiff's Application for Preliminary Injunctive Relief and Terminating the Temporary Restraining Order

Tentative Ruling:

To deny plaintiff's motion for reconsideration.

Explanation:

Michael Martines Physical Therapist, Inc. dba Advanced Physical Therapy ("Plaintiff" or "Martines") is a physical therapy practice located in Fresno, California. On January 30, 2026, Martines filed a Complaint asserting causes of action for (1) breach of contract; (2) violation of the Confidentiality of Medical Information Act ("CMIA"); (3) conversion; (4): fraud; (5) breach of fiduciary duty; (6) aiding and abetting fraud; (7) aiding and abetting breach of fiduciary duty; (8) negligence; (9) negligent interference with contractual relations; and (10) declaratory relief. Martines alleges that defendants "Momentum, working with AdvancedMD and Waystar, moved Plaintiff's active billing operations off the authorized platform and began submitting claims through an unapproved system that Plaintiff had not authorized and could not audit." (Complaint, ¶14.)

On February 24, 2026, this Court granted Martines' ex parte application for a temporary restraining order. The temporary restraining order required that defendants, AdvancedMD Software, Inc. ("AdvancedMD") and Momentum Billing, LLC ("Momentum") perform the following:

1. That defendants cease processing claims in Martines' name through any unauthorized billing pathways and disable unauthorized accounts within their control;
2. That defendants produce to Martines' complete electronic exports of Martines-related claims and payment data from November 1, 2025, to the present;
3. That defendants preserve all Martines-related data, including forensic evidence and logs;
4. That defendants cooperate with an independent third-party forensic audit to restore Martines' billing operations.

On March 26, 2026, Martines' application for a preliminary injunction relief was denied, and the temporary restraining order terminated.

Martines' filed this motion for reconsideration pertaining to the March 26, 2026 order. Martines' request for reconsideration presents the following two new facts: a) on April 3, 2026, Martines received an email from the Centers for Medicare & Medicaid Services ("CMS"), Office of Program Operations and Local Engagement, confirming that Martines' inquiry regarding use of his National Provider Identifier ("NPI") had been received and assigned Case No. 7133523 (Martines Decl., ¶ 5, Ex. A); and b) On April 3, 2026, Martines received communication from CMS Health Insurance Specialist Demetrius Williams of the Medicare Program Operations & Integrity Group, informing him that his case is being "actively worked" and that "CMS is consulting with the Center for Program Integrity regarding the issues [Plaintiff] reported." (Martines Decl., ¶6, Ex. B.)

A motion for reconsideration must be filed within 10 days of service of notice of entry of the order in question. (Code Civ. Proc., § 1008, subd. (a).) The motion must be accompanied by an affidavit from the moving party that states: (1) what application was previously made; (2) when and to what judge; (3) what order was made; and (4) what new or different facts, circumstances or law are claimed to be shown. (Code Civ. Proc., § 1008, subd. (a).)

Under Code of Civil Procedure section 1008, subdivision (a), a motion for reconsideration must be based on new or different facts, circumstances or law. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212.) A party seeking reconsideration must also provide a satisfactory explanation for the failure to produce the evidence at an earlier time. (*Id.*) Facts of which the party seeking reconsideration was aware of at the time of the original ruling are not "new or different." (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690.) A trial court has discretion with respect to granting a motion for reconsideration. (*New York Times Co. v. Superior Court, supra*, 135 Cal.App.4th at p. 212.)

However, Martines does not provide any new information for purposes of Code of Civil Procedure section 1008, subdivision (a).

First, Martines already filed substantially similar evidence in support of his application for a preliminary injunction which was considered by the Court before issuing its Order. (See Martines TRO Decl., ¶ 41, Ex. 6 (explaining how Martines filed a formal breach notification with the Office for Civil Rights at the Department of Health and Human Services on February 4, 2026, and it was assigned a tracking number).) And the Court did not find it persuasive initially.

Second, the contents of the email correspondence between Martines and CMS simply show a government agency's acknowledgement of Martines' concerns. They do not present any new facts.

Third, Martines does not demonstrate how this evidence could not have been discovered earlier. Martines fails to show why he did not email CMS earlier and receive these acknowledgements. While Martines provides that he "left an initial voicemail with CMS prior to April 3, 2026," and had taken steps to report and investigate the underlying issue," (Martines Decl., ¶¶ 8, 10), Martines never explains how why he cannot provide the date on which he first called, or why he never mentioned that he had the ability to check on the status of his report to CMS. Nor does Martines explain why he did not raise this issue

during its application for a preliminary injunction or the March 26, 2026 hearing. Furthermore, communications discussed in Martines's second supplemental declaration were not made in Martines' moving papers, and the Court will not consider arguments (or evidence) presented for the first time in a reply. (*SCI California Funeral Services, Inc. v. Five Bridges Foundation* (2012) 203 Cal.App.4th 549, 572 FN 18.)

Accordingly, the Court denies Martines' motion for reconsideration.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 6/26/2026.
(Judge's initials) (Date)